
Federal Maritime Commission

Informal Docket No. 1954 (F)

Taylor's Resources Inc (USA) d/b/a/ Bridgewater Landing, Inc (USA)

v.

Mitsui OSK. Lines LTD. d/b/a MOL America

To: The Honorable Judge Clay G. Guthridge
Administrative Law Judge Federal Maritime Commission

Dear Sir,

This is to formally request for an extension to respond of 14 days to Mitsui (MOL) response to Supplement of Record dated May 31, 2017.

This request is being made based on new evidence that has come to light in this case, we must share with the court and request this delay in order for independent third party verification to take place.

In particular, it has come to light through documentation MOL has provided to Middlesex County in New Jersey. Dated August 10, 2015 Exhibit MOL-089 attached the container in question MOLU0108835 was returned in Hong Kong on April 3, 2015. MOL Bill of lading MOLU11026857343 provided by defendant states a Laden on Board the Vessel Date of 11/3/ 2015. We have requested MOL Hong Kong to please verify the date this cargo allegedly was transported as this Bill of Lading is not available through MOL online tracking system

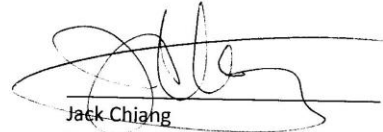
Secondly MOL Exhibit MOL-026 allegedly shows the container being opened in Hong Kong. Based on information presented on a building in the background of this photo, we believe this to be a photo taken at the import facility in Xingang China. We have requested an independent third party in Xingang to provide verification on this point.

Our request for this third party verification is to show the Court based on Bill of Lading MOLU11026857343 provided by MOL, since the seal 3114896 is the same seal placed on this container in Atlanta GA on the original bill of Lading in Exhibit (1) MOLU26005510205. Then this container must have been opened in Xingang and not Hong Kong as MOL has contended. Since customs in China requires all containers being imported that have been opened be resealed if transshipped to Hong Kong.

Finally, BLI is astonished that MOL was successful in being able to reach the Consignee Tianjin Shanhai Commercial Trade Co., Ltd on container MOEU0717549 but was unsuccessful in having the Consignee remove or give cause for container MOEU0108835.

BLI requests this extension to investigate these points.

Dated June 6, 2017



Jack Chiang
Taylors Resources Inc
51 Cragwood Rd, Suite 301
South Plainfield, NJ 07080
Tele: 908-668-4735 X 401
Fax: 908-668-1855



MOL (America) Inc.
10 Woodbridge Centre Drive, Suite 900, Woodbridge, NJ07095
1-800-OK-GATOR
www.MOLpower.com
www.CountOnMOL.com

Date: Aug. 10th 2015.

BRIDGEWATER LANDING INC.
700 FENNEL DRIVE
RESACA, GA 30735
US

RE: Collection of container detention charges and cargo disposal costs at destination.

BL: MOLU26005510205 (MOEU0108835 - 45')

Vessel: MOL LOIRE v. 8702B

Cargo Received at Jacksonville, FL: Jan 11th, 2013

Arrived at Xingang, China: Mar.12th, 2013

China does not allow the import of plastics scrap due to new environmental policy. the goods were re-shipped to Hong Kong for disposal by MOL. The empty container was returned to MOL in Hong Kong on Apr. 3rd, 2015.

Please be advised that BRIDGEWATER LANDING INC. has shipped one 45' container with MOL under the contract number of US00001RR from Jacksonville, FL to Xingang, China. However, the consignee - TIANJIN TEDA HAI JIE LOGISTICS CO.,LTD has abandoned the cargo in Xingang. Carrier had to re-export the goods to Hong Kong and to have the cargoes disposed there. It was until Apr. 3rd, 2015 that the cargos were disposed of and the empty container was returned to MOL.

As a result, we need to collect the detention charges, container re-export costs, ocean freight and surcharges for the further transportation from Xingang to Hong Kong, cargo disposal costs in amount of USD87,855.60 from shipper based on the fact that BRIDGEWATER LANDING INC. is the contract holder of the contract with MOL.

	RMB	USD
Re-export costs	26,730.00	4,262.4
detention	502,620.00	80,148.6
Ocean Freight		1,850.00
Disposal cost	10,000.00	1,594.60
Balance Due Amount	541,200.00	87,855.60

Thank you for your kind attention.

Best Regards,
Becky Au
Manager
Accounts Receivable & Treasury Department

MOL-089

MOL Mitsui O.S.K. Lines, Ltd.**WAY BILL (NON-NEGOTIABLE)****Shipper**

TIANJIN HAIJIE LOGISTICS CO., LTD
2-3 YUE LAN DONG XUAN, TIANBAO
GOLDEN COAST, 3RD STREET, TIANJIN
TEL:022-66388056

Booking No **11026857343-A**Waybill No **MOLU11026857343**

RECEIVED in apparent external good order and condition except as otherwise noted the total number of Containers or other packages or units enumerated below(*) for transportation from the Place of Receipt to the Place of Delivery subject to the terms and conditions on the face and back hereof and delivery there to the Consignee on production of proof of identity.

IN WITNESS WHEREOF, the undersigned, on behalf of Mitsui O.S.K. Lines Ltd., as the Carrier, has signed the number of Waybill(s) stated under, all of tenor and date.

This Waybill is not to be construed as a Bill of Lading or as any other similar document of title as referred in the International Carriage of Goods by Sea Act of Japan, 1957 as amended 1992 or any other foreign legislation of a nature similar to the International Convention for the Unification of Certain Rules relating to Bills of Lading signed at Brussels on August 25, 1924 or the amendments by the Protocol signed at Brussels on February 23, 1968 or the amendments by the Protocol signed at Brussels on December 21, 1979.
(The terms and conditions of Waybill continued on the back hereof.)

Consignee

CHI NEW RESOURCE TRADING COMPANY
UNIT 2103A PARK BUILDING 476
CASTLE PEAK ROAD KOWLOON
TEL:852-91859578

Shipper's Declared Value _____ USD subject to terms and conditions overleaf.

Notify Party

SAME AS ABOVE

Also Notify _____ (For Merchant's reference only)

Pre-carriage by

Place of receipt
XINGANG, CHINA - CY

Ocean vessel/Voy. No. 0302A
MOL PARTNER

Port of loading
XINGANG, CHINA

Port of discharge
HONG KONG

Place of delivery
HONG KONG - CY

Final destination for the Merchant's reference

Container No. ; Seal No. ; Marks & Nos	No. of Containers or Packages	HM	Type or kind of Containers or Packages - Description of goods	Gross Weight (KGS)	Measurement (M3)
MOEU0108835/3114896/C5			FREIGHT PREPAID. SHIPPER'S LOAD AND COUNT.		
N/M	1 X 45'		HIGH CUBE CONTAINER SAID TO CONTAIN: 32 PIECES PLASTIC SCRAP HS:39151000 FREIGHT PREPAID	17,990.000	65.000

"NOTWITHSTANDING ANY PROVISIONS OVERLEAF IN RELATION TO GENERAL AVERAGE, THE CARRIER IS AT ITS DISCRETION ENTITLED TO STIPULATE WHICH VERSION OF THE YORK ANTWERP RULES BEING EITHER THOSE OF 1974 AS AMENDED IN 1990, OR 1994 OR 2004 WILL APPLY TO THE ADJUSTMENT OF SUCH GENERAL AVERAGE"

*Total number of Containers or other packages or units received by the Carrier (in words): **ONE CONTAINER**

Code	Tariff Item	Basis	Freighted as	Curr.	Rate	Per	Prepaid	Collect
OFR	HK0000DE3	45	1.000 45	USD	1850.00000	45	1850.00	
DOCUMENT		PB	1.000 BL	HKD	450.00000	BL		450.00
DOCUMENT		PB	1.000 BL	CNY	450.00000	BL	450.00	
SEAL/RSEAL		45	1.000 45	CNY	40.00000	45	40.00	
Totals & Pay at:							USD 1850.00 TIANJIN CNY 490.00	HKD 450.00 HONG KONG

No. of Originals **ONE**
Place and date of Waybill issue:
TIANJIN 11-03-2015
LADEN ON BOARD THE VESSEL MOL PARTNER VOY NO 0302A AT
XINGANG
Date 11-03-2015 Signature MOL (CHINA) CO., LTD.
As Agents

Mitsui O.S.K. Lines, Ltd. as Carrier

MOL (CHINA) CO., LTD.

Particulars furnished by shipper

**Mitsui O.S.K. Lines, Ltd.****WAYBILL (NON-NEGOTIABLE)****(COPY)**

Shipper/Exporter BRIDGEWATER LANDING INC. 700 FENNELL DRIVE RESACA, GA 30735		Booking No. 26005395441-A Export References REFERENCE NO.: 12135-1	Waybill No. MOLU26005510205
Consignee TIANJIN SHANHAI JIAFU COMMERCIAL TRADE CO., LTD. ROOM 301, NO 1, BUILDING C, DISTRICT 1, JIN BIN JIE ZUO, 4TH AVE TEDA TIANJIN, CHINA 300457 TEL: 022-59851558 FAX: 022-59851560		Forwarding Agent	
Notify Party SAME AS CONSIGNEE		Also Notify -- Export Instructions (For Merchant's Reference only) THESE COMMODITIES, TECHNOLOGY, OR SOFTWARE WERE EXPORTED FROM THE UNITED STATES IN ACCORDANCE WITH THE EXPORT ADMINISTRATION REGULATION, DIVERSION CONTRARY TO U.S. LAW PROHIBITED.	
Pre-Carriage By	Place of Receipt ATLANTA, GA - CY		
Ocean Vessel/Voy. No. 045E MOL PARAMOUNT	Port of Loading JACKSONVILLE, FL	Point and Country of Origin of Goods (For Merchant's Reference only) UNITED STATES	
Port of Discharge XINGANG	Place of Delivery XINGANG - CY	Loading Pier Terminal JACKSONVILLE - TRAPAC TERMINAL	
		Final Destination for Merchant's Reference	

Particulars furnished by shipper

Container No. ; Seal No. ; Marks & Nos.	No. of Containers or Packages	HM	Type or Kind of Containers or Packages - Description of Goods	Gross Weight	Measurement
MOEU0108835/3114896/C5			SED Not Required-AES (#X20130115017041) FREIGHT PREPAID. SHIPPER'S LOAD AND COUNT. 1 X 45' HIGH CUBE CONTAINER SAID TO CONTAIN: 32 PIECES PLASTIC SCRAPS 14 DAYS DETENTION FREE IN XINGANG	39660.000LB 17990.000KG	2295.453 F3 65.000 M3

"NOTWITHSTANDING ANY PROVISIONS OVERLEAF IN RELATION TO GENERAL AVERAGE, THE CARRIER IS AT ITS DISCRETION ENTITLED TO STIPULATE WHICH VERSION OF THE YORK ANTWERP RULES BEING EITHER THOSE OF 1974 AS AMENDED IN 1990, OR 1994 OR 2004 WILL APPLY TO THE ADJUSTMENT OF SUCH GENERAL AVERAGE"

*Total number of Containers or other packages or units received by the carrier (in words): **ONE CONTAINER**

Code	Tariff Item	Basis	Freighted As	Curr.	Rate	Per	Prepaid	collect
OFR	US00001RR	45	1.000 45	USD	1000.00000	45	1000.00	
BUNKER		45	1.000 45	USD	172.00000	45	172.00	
DOCUMENT	PB		1.000 BL	CNY	400.00000	BL		400.00
MSL		45	1.000 45	USD	10.00000	45	10.00	
DOCUMENT	PB		1.000 BL	USD	50.00000	BL	50.00	
CHASSIS-O		45	1.000 45	USD	60.00000	45	60.00	

LADEN ON BOARD THE VESSEL 01-19-2013	No. of originals	Place and Date of Waybill Issue: NEW YORK 01-19-2013	Totals Pay At:	USD 1292.00 NEW YORK	CNY 400.00 XINGANG
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 (The terms and conditions of Waybill continued on the back hereof.)

Mitsui O.S.K. Lines, Ltd., as Carrier

 By **MOL (AMERICA) INC.** As Agents



MOEU
010 883 5
L5G1

TIR

J. ACEP

MAX GROSS WT	30 480 kg
TARE WT	4 820 kg
MAX CARGO WT	25 660 kg

